

26CHCV00650 26CHCV00650

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26CHCV00650 Hearing Date: August 6, 2026 Dept: F49

Dept. F49

Date: 8/6/26

Case Name: Rosa Acevedo v. Farmers Insurance Exchange,
and Does 1-10

Case No. 26CHCV00650

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 6, 2026

MOTION TO DEEM

REQUESTS FOR ADMISSION ADMITTED; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 26CHCV00650

Motion filed: 5/27/26

MOVING PARTY: Defendant Farmers Insurance Exchange

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court deeming admitted the matters set forth in Defendant Farmers Insurance Exchange's First Set of Requests for Admissions; and awarding sanctions in the amount of \$797.50.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This insurance dispute arises over the denial of a claim Plaintiff Rosa Acevedo ("Plaintiff") alleges was covered under her homeowner's insurance policy with Defendant Farmers Insurance Exchange ("Defendant"). On February 13, 2026, Plaintiff filed the Complaint against Defendant and Does 1 through 10, alleging breach of contract and tortious bad faith.

On March 10, 2026, Defendant filed an Answer.

On May 27, 2026, Defendant filed the instant motion for an order deeming admitted the matters specified in Defendant's First Set of Requests for Admissions (the "Motion").

On July 30, 2026, Defendant filed a Notice of Non-Opposition to Motion.

No opposition or reply papers have been filed.

ANALYSIS

A.

Motion to Deem Requests for Admission Admitted

"A defendant may make requests for admission by a party without leave of court at any time." (Code Civ. Proc. § 2033.020, subd. (a).) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party." (Code Civ. Proc. § 2033.250., subd. (a).)

If a party fails to serve timely responses

to requests for admission, the party to whom the requests are directed waives any objection to the requests, and the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified be deemed admitted. (Code Civ. Proc. § 2033.280, subds. (a), (b).) Unless the court “finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220,” the court must grant the motion. (Id., § 2033.280, subd. (c).)

The Court may, on motion, relieve a

party of the waiver of objection if the party subsequently serves a response that substantially complies with the statutory requirements and the failure to serve a timely response “was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2033.280, subd. (a).)

Defendant’s counsel attests that Defendant served its First Set of Requests for Admissions on Plaintiff on March 23, 2026. (Warner Decl., ¶ 3.) Proof of service attached to the requests indicates that they were served via email. (Id., Exh. A, Proof of Service.) Plaintiff did not request an extension of time to respond. (Id., ¶ 4.) Responses were accordingly due on April 24, 2026. (Code Civ. Proc., §§ 1010.6; 2033.250.) As of the filing of the Motion, Plaintiff had not served any responses to the requests. (Id., ¶ 7.)

Based on the foregoing, the Court finds that Plaintiff failed to timely serve responses to Defendant’s First Set of Requests for Admissions, thereby waiving any objections to the requests. Plaintiff has not opposed the Motion or otherwise indicated that responses were served before the hearing. The Court therefore GRANTS the Motion.

B. Request for Sanctions

“It is mandatory that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [filing a] motion.” (Code Civ. Proc., § 2033.280, subd. (c).) Even when no opposition to a motion is filed, California Rules of Court, rule 3.1348, subdivision (a) permits the Court to award sanctions pursuant to the Discovery Act in favor of a party who files a motion

to compel discovery.

Sanctions under these circumstances are mandatory.

Defendant requests sanctions in the amount of \$797.50, calculated as 2.5 hours' work expended on preparation of the moving papers, at the hourly rate of \$295.00, plus filing fees of \$60.00. (Warner Decl., ¶ 8.)

The Court finds that Defendant's counsel's hourly rate is reasonable. However, given that the Motion presented the straightforward issue of non-response, the Court finds the reasonable time spent preparing the Motion to be one hour. The Court accordingly awards attorney fees and costs in the reduced amount of \$355.00 (one hour at \$295.00 per hour, plus the \$60 filing fee).

The Court thus GRANTS IN PART the request for monetary sanctions.

CONCLUSION

The Court GRANTS Defendant Farmers Insurance Exchange's motion.

The Court orders that the matters specified in Defendant's First Set of Requests for Admission to Plaintiff Rosa Acevedo are deemed true.

Defendant's request for sanctions is GRANTED IN PART. Plaintiff Rosa Acevedo is ordered to pay Defendant's counsel \$355.00 within 30 days.

Moving party to give notice.